

		GM is to file its Answer within 10 days. <i>Plaintiff is to give notice of this ruling.</i>
12.	Waypoint Aviation Services v. Transcontinental Air LLC 25-1495879	(Moot-FAC filed)
13.	Soteropoulos v. FCA US LLC 25-1492568	(Moot-FAC filed)
14.	Glickman v. Krolkowski 19-1049771	Before the Court are the Demurrer and Motion to Strike filed on 12/15/25 by Defendants Charles Krolkowski and Newmeyer & Dillion LLP ("Defendants"), directed to the Eighth Cause of Action in the Fourth Amended Complaint (the "Fourth AC") filed on 11/13/25 by Plaintiff William Glickman ("Plaintiff"). The Demurrer is OVERRULED. The Demurrer asserts that the claim under C.C.P. § 496 fails to state sufficient facts to support the cause of action. However, although not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will suffice, a claim is stated where facts are also alleged to infer careful planning and deliberation reflecting the requisite criminal intent. (<i>Siry Investment, L.P. v. Farkhondehpour</i> (2022) 13 Cal.5th 333, 361-362; <i>Johnson v. Connie, LLC</i> (2025) 113 Cal.App.5th 850, 855-856.) Plaintiff alleges here that the Defendants repeatedly made knowingly false representations to Plaintiff to obtain fees, under circumstances reflecting careful planning, deliberation, and concealment, and thus showed criminal intent. (Fourth AC, ¶¶ 34, 36, 109-117, 130, 139-143, 189-193, and 369-371.) The claim is thus adequately pled to withstand Demurrer. Defendants' assertions that the claim lacks merit are beyond the scope of Demurrer. The Motion to Strike is DENIED. The motion asserts that the sums claimed as damages on the Eighth Cause of Action are grossly excessive. But Defendants have not shown that the dollar value for what was allegedly stolen is necessarily the only basis to claim actual damages here. (See <i>Citizens of Humanity, LLC v. Costco Wholesale Corp.</i> (2009) 171 Cal.App.4th 1, 18-19 [disapproved on other grounds in <i>Kwikset Corp. v. Sup. Court</i> (2011) 51 Cal.4th 310].) Whether the specific sums claimed as damages are justifiable is beyond the scope of the motion. Defendants are to file their Answer to the Fourth AC within 10 days. <i>Plaintiff is to give notice of these rulings.</i>
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